TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
FEBRUARY 27, 2023
MINUTES

STAFF REPORT

Present: Steven Wood, Chair, Giles Branch, Megan Stevens, Elliott Barrow, Aaron Butner, Molly Hall, Julian Hopkins.
Staff: Chris Swalhah, James Ward, Lynnette Lynes

Mr. Wood called the meeting to order at 6:00 pm.

A. Approval of Agenda

Mr. Butner moved for approval of the agenda. Mr. Branch seconded the motion. All in favor.

B. Approval of December 5th Minutes

Mr. Butner moved for approval of the minutes. Mr. Branch seconded the motion. All in favor.

C. Approval of January 30th Minutes

Mr. Butner moved for approval of the minutes. Mr. Branch seconded the motion. All in favor.

D. Public Comment

There being no comments, Mr. Wood continued with the agenda.

E. General Correspondence

Mr. Swalhah stated there was some correspondence received prior to the beginning of the meeting that would be read during that agenda item.

F. Explanation of Procedures
G. Administration of Oath

Mr. Wood reviewed the procedures and administered the oath to those speaking.

H. Business

1. Case V-03-23, 509 Ferry Street, TMS# 532-05-00-158. Request for relief from the strict application of §156.140(D)(5) to make improvements onto an existing nonconforming home; where the value of said improvements exceed 50% of the property's assessed value.

- Mr. Swalhah reviewed staff comments with the Board.

- Ms. Lisa McLeod and Mr. Mike Colarusso reviewed the request with the Board. They stated that they have letters from Mr. Joe Clark and Mr. Benjamin Foy and Ms. Kerry Foy.

There being no comments, Mr. Wood continued to Board questions.

- Mr. Wood closed public comment.

- *Mr. Barrow moved for denial of the request based on the findings that there might be extraordinary conditions as other properties might not have the same condition and conditions might not generally apply to other properties, denial will not prohibit the use of the property as the non-conformity can be removed and the property still utilized and there is no detriment to the surrounding neighborhood as evidenced by the correspondence from neighbors. Motion passed on a 4 to 3 vote with Mr. Barrow, Ms. Stevens, Ms. Hall and Mr. Wood in favor; Mr. Butner, Mr. Branch and Mr. Hopkins opposed.*

2. Case V-04-23, 1870 Peaceful Way, TMS# 556-00-00-281. Request for relief from the strict application of §156.201(I)(2)(e)(1)(b) to make improvements to an existing pool within the critical line buffer.

- Mr. Swalhah reviewed staff comments with the Board.

- Ms. Cindy Strout, owner, reviewed the request with the Board.

- There being no comments, Mr. Wood closed public comment.

- *Mr. Branch moved for approval as it meets all four criteria in that the property is an unusual shape and addition of this requirement to add this to the plat for recording contributed to the problem, does not apply to other properties as stated*

by staff as recently recorded plats do not have the buffer, denial would prohibit the utilization of the property as they would not be able rebuild the pool, and there is no detriment as the pool is not visible to neighbors. Mr. Butner seconded the motion. All in favor.

3. **Case V-05-23, 728 Adluh Street, TMS #532-06-00-053. Request for relief from the strict application of 156.303(Table) and §156.140(D)(5) to allow 5.2-foot encroachment into the rear setback and improvements upon the existing nonconforming structure; where the value of said improvements exceed 50% of the property's assessed value.**

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Wood administered the oath to Mr. Matt McCauley. Mr. McCauley reviewed the request with the Board.

- There being no comment, Mr. Wood closed public comment.

- *Mr. Branch moved for approval with the condition that there is no further encroachment than what currently exists based on the findings that the home was built in Charleston County before the Town ordinance was enacted, it does not apply to other properties as it is a corner lot with different setbacks from adjacent properties, denial would prohibit use of the property as the home could not be renovated, and there is no detriment to the neighborhood as the property has been in existence for over 70 years. Mr. Hopkins seconded the motion. All in favor.*

I. Approval of Final Orders

- The Board signed final orders.

There being no further business, the meeting adjourned at 7:01 pm.

Submitted by,
L. Lynes
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